

ches are capable. Moreover, any such abusive legislation can be challenged without suit against the legislator himself, as by challenge against the enforcement of the unconstitutional act. See, e.g., *Dombrowski v. Pfister*, 380 U.S. 479 (1965).

Thus, the argument that judicial immunity should be extended to prospective relief because legislators are granted that ultimate immunity is an empty one.

- C. Immunity from damages is provided to judges and prosecutors to protect the integrity of the judicial process; to the same end, judges, like prosecutors, are subject to suit for prospective relief in the narrow range of cases in which it is necessary to protect federal constitutional rights.

As established above, the doctrine of judicial immunity can hardly derive any modern day justification from its historical purpose to enforce appeals. Nor can such justification be derived from a need for independence from the Star Chamber nor from the Constitution nor from the separation of powers principle. In fact, of the three branches of government, the immunity given the judiciary is based on justification which has been deemed of singularly "mysterious" origin. Nagel, *supra*, at 245.

Yet the mystery is resolved upon recognition that judicial immunity is but one of a number of immunities provided to protect the judicial process, as this Court explained in its recent decision in *Briscoe v. Lahue*, 103 S.Ct. 1108 (1983).

In *Briscoe*, the Court squarely rejected, as it had previously, see, e.g., *Supreme Court of Virginia v. Consumers Union*, 446 U.S. 719 (1980); *Stump v. Sparkman*, 435 U.S. 349 (1978), an immunity analysis based on status for one based on function. Such functional analysis leads to